SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA

Department 1
Honorable Eunice Lee, Presiding

TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 23, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling, in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINE 1	25CV467969	Krysta Mercurio et al vs Jayden Tran et al	**Minor's Compromise Hearing** Parties to appear.
LINE 2	25CV482470	Sameh Alshraideh vs Michael Thompson et al	**Motion to Withdraw as Attorney** Parties to appear.

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9:00 A.M.

Calendar Lines # 1	
Case Name Kristin Hoffman vs Kaiser Permenente Division of Research, Vaccine Study Center	
Case No. 24CV429115	

Motion for a Court Order to Advance a Hearing

I. BACKGROUND

A. BRIEF FACTUAL HISTORY

On January 16, 2024, Plaintiff Kristin Hoffman filed a Complaint against Defendant The Permanente Medical Group, Inc. ("TPMG")[1] for allegations relating to the vaccination of her son, a minor. (Complaint).

B. RELEVANT PROCEDURAL HISTORY

The defendants filed a motion to compel arbitration and stay the action under Code of Civil Procedure section 1281.4 on March 27, 2025 based on the allegations asserted in the Complaint. That motion was heard on November 6, 2025 in front of the Honorable Shella Deen. After the hearing, on November 6, the Honorable Deen granted the defendants' motion to compel arbitration and stayed the matter, a formal order was executed on December 3, 2025.

Since that ruling, the matter has been stayed. Arbitration proceedings were initiated and Thomas Denver was assigned as the arbitrator in this matter. (TPMG's Opposition, p. 2). On March 5, 2026, the parties attended an arbitration management conference before Mr. Denver. (Declaration of Collin W. Wayne, p. 2). The arbitration is scheduled for April 19, 2027. (*Id*)..

Despite the stay, and after the arbitration management conference, the plaintiff filed three separate motions in this matter: (1) "Motion to Move Case Back to State Court After Exhausting Arbitration as a Legal Option" that was filed on April 30, 2026 and the clerk's office set for hearing on January 14, 2027; (2) this present "Motion Requesting a Judge's Order to Move Up Hearing Date" that was filed on May 4, 2026, and the clerk's office set for hearing on June 23, 2026; and (3) "Motion for Summary Judgment in *Civil* Case" that was filed on May 4, 2026 and the clerk's office set for hearing on August 6, 2026.

The Court carefully reviewed the following: Plaintiff's "Motion Requesting a Judge's Order to Move up Hearing Date" and attached Exhibits A-F (totaling 18 pages); Defendant's Opposition to Plaintiff's Motion (totaling 4 pages); Declaration of Collin W. Wayne in Support of Defendant's Opposition and attached Exhibit A (totaling 12 pages); the defendant's proof of service; and the pleadings.

II. LEGAL STANDARD

A. PROCEDURAL VIOLATION

As a preliminary matter, the court notes that the plaintiff's moving papers was not accompanied by a proof of service to the defendants. Further, the motion did not include a notice of hearing on the motion and memorandum of points and authorities in support of the motion as required by California Rule of Court, rule 3.1112. There were no Declarations attached to the moving order but Exhibits A-F were attached. Plaintiff is hereby admonished for the violation. Any future violations may result in the court's refusal to consider noncompliant papers.

[1] Defendant TPMG asserts that the plaintiff erroneously named as non-legal entity "Kaiser Permanente Division of Research, Vaccine Study Center, a Division of Kaiser Foundation Hospitals." (Defendant's Opposition, p. 1).

B. THE ACTION WAS STAYED IN ITS ENTIRETY PENDING THE OUTCOME OF ARBITRATION UNDER CODE OF CIVIL PROCEDURE SECTION 1281.4

Purusant to Code of Civil Procedure section 1281.4:

> If an application has been made to a court of competent jurisdiction, whether in this State not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate. . .

"Code of Civil Procedure section 1281.4 requires that a court impose a stay of litigation whenever that court, or another court, has ordered arbitration of a controversy that is an issue in the litigation." (*MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 647). "The Court in which the litigation is pending is required to stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." (*Ibid*). "The purpose of the statutory stay [required pursuant to section 1281.4] is to protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." (*Id*. at p. 658). "In the absence of a stay, the continuation of the proceedings in the trial court disrupts the arbitration proceedings and can render them ineffective." (*Ibid*). "[A] trial court possesses some amount of discretion to lift a stay imposed pursuant to section 1281.4, prior to the completion of an ordered arbitration." (*Id*. at p. 660). "[T]he most reasonable interpretation of the stay provision is that it grants a trial court discretion to lift a stay prior to the completion of arbitration *only* under circumstances in which the lifting of the stay would not frustrate the arbitrator's jurisdiction." (*Ibid*., emphasis added).

III. ANALYSIS

Here, the plaintiff seeks to advance a hearing on a "motion to move case back to state court after exhausting arbitration as a legal options" and asserts that the burden of proof for a civil case has been met. (Plaintiff's motion, p. 3). Plaintiff asserts that this ". . . CIVIL case has evolved into a much larger CRIMINAL case" that necessitates that case to expediate and advance the hearing for public safety. (*Id).*

Defendants opposes the motion and cites that the plaintiff fails to provide any legal authority to substantiate her request. (Defendant's opposition, p. 2). Defendant emphasizes that on November 6, 2025, the court granted arbitration and stayed the matter in its entirety. (*Id.;* Declaration of Wayne, p. 2; Exhibit A). Given that order, the defendants assert that the plaintiff does not have grounds to file the three subsequent motions, including this motion. (*Id).* Accordingly, Defendants seek to have the motion denied on procedural grounds. (*Id).*

Given the procedural violations and deficiencies of the moving papers as well as the November 6, 2025 order granting arbitration and stay of the entire matter by the Honorable Deen, there is no grounds to lift the stay and entertain this motion at this time. Arbitration was ordered, initiated by the parties, an arbitration management conference was held, and arbitration is currently set for April 19, 2027.

IV. CONCLUSION

Based on the foregoing, the plaintiff's "Motion Requesting a Judge's Order to Move Up Hearing Date" is DENIED.

Furthermore, given the prior November 6, 2025 court order (formally executed on December 3, 2025 by the Honorable Shella Deen) granting arbitration and a stay in entirety under Code of Civil Procedure section 1281.4;

lack of legal authority to lift the said stay; and arbitration being set for April 19, 2027, the Court hereby VACATES the plaintiff's "Motion to Move Case Back to State Court After Exhausting Arbitration as a Legal Option" filed on April 30, 2026 that the clerk's office set for January 14, 2027, and "Motion for Summary Judgment in *Civil* Case" filed on May 4, 2026 that the clerk's office set for August 6, 2026.

The Court will prepare the formal Order.

Calendar Lines # 3-4
Case Name Raul Reynoso et al vs General Motors, LLC.
Case No. 24CV453791

Demurrer (Line # 3) and Motion to Strike (Line # 4)
Before the court is Defendant General Motors, LLC's Demurrer to Plaintiffs' First Amended Complaint ("FAC") (Line # 3) and Defendant's Motion to Strike punitive damages from Plaintiffs' FAC (Line # 4). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. The Background portion is addressed in the Demurrer analysis.

DEMURRER (LINE # 3)

I. BACKGROUND

On or about March 31, 2017, plaintiffs Raul Galvez Reynoso and Jose Marin Ruiz (collectively, "Plaintiffs") entered into a warranty contract with defendant General Motors, LLC ("GM") regarding a 2017 Chevrolet Colorado vehicle ("Subject Vehicle"). (First Amended Complaint ("FAC"), ¶6). Defects and nonconformities to warranty manifested themselves within the applicable express warranty period including, but not limited to, engine defects, electrical defects, and steering defects. (FAC, ¶11). Said defects/ non-conformities substantially impair the use, value, or safety of the Subject Vehicle. (FAC, ¶12). Defendant GM has failed to either promptly replace the Subject Vehicle or to promptly make restitution. (FAC, ¶15).

On December 11, 2024, Plaintiffs filed a complaint against defendant GM asserting causes of action for:

(1) Violation of subdivision (d) of Civil Code section 1793.2
(2) Violation of subdivision (b) of Civil Code section 1793.2
(3) Violation of subdivision (a)(3) of Civil Code section 1793.2
(4) Breach of the Implied Warranty of Merchantability
(5) Fraudulent Inducement – Concealment

On February 14, 2025, defendant GM filed a demurrer and motion to strike Plaintiffs' complaint.

On August 13, 2025, prior to a hearing on defendant GM's demurrer and motion to strike, Plaintiffs filed the now operative FAC which continues to assert the same causes of action asserted in Plaintiffs' original complaint.

On September 10, 2025, defendant GM filed the two motions now before the court, a Demurrer to Plaintiffs' FAC (Line # 3) and a Motion to Strike the prayer for punitive damages from Plaintiffs' FAC (Line # 4).

II. LEGAL STANDARD

Code of Civil Procedure section 871.21 sets forth only three circumstance in which the six-year limit "shall be tolled."

(1) As provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable.
(2) For the time the motor vehicle is out of service by reason of repair for any nonconformity.
(3) For the time period after a pre-suit notice is provided to the manufacturer in accordance with [Code of Civil Procedure] Section 871.24, which time period shall not exceed 60 days.

"'[W]hile a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, [a] statute of repose limits the time within which an action may be brought and is not related to accrual. Indeed, "the injury need not have occurred, much less have been discovered. Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a special event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted." [Citation.]'" (*McCann v. Foster Wheeler LLC* (2010) 48 Cal.4th 68, 78–79, fn. 2 [105 Cal. Rptr. 3d 378, 225 P.3d 516], quoting *Giest v. Sequoia Ventures, Inc.* (2000) 83 Cal.App.4th 300, 305 [99 Cal. Rptr. 2d 476]; accord, *Cossman v. DaimlerChrysler Corp.* (2003) 108 Cal.App.4th 370, 379, fn. 8 [133 Cal. Rptr. 2d 376]).

Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed. (*Stuart v. American Cyanamid Co.* (2d Cir. 1998) 158 F.3d 622, 627; 51 Am.Jur.2d (2011) Limitation of Actions, § 354, pp. 762–763 ["a statute of repose … nullifies both the remedy and the right"]; 51 Am.Jur.2d, supra, Limitation of Actions, § 24, p. 507 [statute of repose "extinguishes the action, or terminates any right to action, after a fixed period of time has elapsed" (fns. omitted)]). The effect of a statute of repose "'is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. [Citation.]'" (*McCann v. Foster Wheeler LLC*, *supra*, 48 Cal.4th at p. 78, fn. 2, quoting *Giest v. Sequoia Ventures, Inc.*, *supra*, 83 Cal.App.4th at p. 305). Put another way, a statute of repose "'does not cut off an existing right of action, but rather provides that nothing which happens thereafter can be a cause of action.'" (*San Diego Unified School Dist. v. County of San Diego* (2009) 170 Cal.App.4th 288, 301 [87 Cal. Rptr. 3d 796], quoting *Inco Development Corp. v. Superior Court* (2005) 131 Cal.App.4th 1014, 1020 [31 Cal. Rptr. 3d 872]; accord, *CTS Corp.*, *supra*, 573 U.S. at p. ___ [134 S.Ct. at p. 2187] [a statute of repose "mandates that there shall be no cause of action beyond a certain point, even if no cause of action has yet accrued. Thus, a statute of repose can prohibit a cause of action from coming into existence"]).(*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 177-178 (*PGA*)).

III. ANALYSIS

A. FIRST AND FOURTH CAUSES OF ACTION UNDER THE SONG-BEVERLY ACT

Here, Defendant GM argues the first four causes of action of Plaintiffs' FAC are barred by a statute of repose found at Code of Civil Procedure section 871.21, subdivision (b), which states, "Notwithstanding subdivision (a), an action covered by Section 871.20[2] shall not be brought later than six years after the date of original delivery of the

[2] Code of Civil Procedure section 871.20, subdivision (a) of that section (effective prior to April 2, 2025 as Plaintiff's complaint was filed December 11, 2024) states: "Notwithstanding any other law, this chapter applies to an action to proceed under this chapter, seeking restitution or replacement of a motor vehicle pursuant to subdivision (b) or (d) of Section 1793.2, Section 1793.22, or Section 1794 of the Civil Code, or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty." Defendant GM concludes generally that

motor vehicle." Defendant GM invites this court to infer from the allegation that Plaintiffs entered into a warranty contract for the Subject Vehicle on March 31, 2017 that March 31, 2017 is also the date of purchase and of original delivery and the six year statute of repose ended on March 31, 2023. Since Plaintiffs did not commence this action until December 11, 2024, defendant GM contends the first four causes of action of Plaintiffs' FAC are barred.

> "'[W]hile a statute of limitations normally sets the time within which proceedings must be commenced once a cause of action accrues, [a] statute of repose limits the time within which an action may be brought and is not related to accrual. Indeed, "the injury need not have occurred, much less have been discovered. Unlike an ordinary statute of limitations which begins running upon accrual of the claim, [the] period contained in a statute of repose begins when a special event occurs, regardless of whether a cause of action has accrued or whether any injury has resulted." [Citation.]'" (*McCann v. Foster Wheeler LLC* (2010) 48 Cal.4th 68, 78–79, fn. 2 [105 Cal. Rptr. 3d 378, 225 P.3d 516], quoting *Giest v. Sequoia Ventures, Inc.* (2000) 83 Cal.App.4th 300, 305 [99 Cal. Rptr. 2d 476]; accord, *Cossman v. DaimlerChrysler Corp.* (2003) 108 Cal.App.4th 370, 379, fn. 8 [133 Cal. Rptr. 2d 376]).
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> Whereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed. (*Stuart v. American Cyanamid Co.* (2d Cir. 1998) 158 F.3d 622, 627; 51 Am.Jur.2d (2011) Limitation of Actions, § 354, pp. 762–763 ["a statute of repose … nullifies both the remedy and the right"]; 51 Am.Jur.2d, supra, Limitation of Actions, § 24, p. 507 [statute of repose "extinguishes the action, or terminates any right to action, after a fixed period of time has elapsed" (fns. omitted)]). The effect of a statute of repose "'is [thus] harsher than a statute of limitations in that it cuts off a right of action after a specified period of time, irrespective of accrual or even notice that a legal right has been invaded. [Citation.]'" (*McCann v. Foster Wheeler LLC*, *supra*, 48 Cal.4th at p. 78, fn. 2, quoting *Giest v. Sequoia Ventures, Inc.*, *supra*, 83 Cal.App.4th at p. 305). Put another way, a statute of repose "'does not cut off an existing right of action, but rather provides that nothing which happens thereafter can be a cause of action.'" (*San Diego Unified School Dist. v. County of San Diego* (2009) 170 Cal.App.4th 288, 301 [87 Cal. Rptr. 3d 796], quoting *Inco Development Corp. v. Superior Court* (2005) 131 Cal.App.4th 1014, 1020 [31 Cal. Rptr. 3d 872]; accord, *CTS Corp.*, *supra*, 573 U.S. at p. ___ [134 S.Ct. at p. 2187] [a statute of repose "mandates that there shall be no cause of action beyond a certain point, even if no cause of action has yet accrued. Thus, a statute of repose can prohibit a cause of action from coming into existence"]).

(*PGA West Residential Assn., Inc. v. Hulven Internat., Inc.* (2017) 14 Cal.App.5th 156, 177-178 (*PGA*)).

Even assuming March 31, 2017 is the original date Plaintiffs took delivery of the Subject Vehicle, the court does not find Code of Civil Procedure section 871.21, subdivision (b), operates as a statute of repose. "[U]nlike a procedural statute of limitations, substantive statutes of repose are generally not subject to statutory or equitable tolling." (*PGA*, *supra*, 14 Cal.App.5th at p. 178). Code of Civil Procedure section 871.21, however, expressly provides, "The time periods prescribed in subdivisions (a) and (b) shall be tolled as follows…." (Code Civ. Proc., §871.21, subd. (c)). Since Code of Civil Procedure section 871.21, subdivision (b), is expressly subject to statutory tolling, the court finds it to be a statute of limitation, not a statute of repose.

One of the statutory bases for tolling states that the time period is tolled, "For the time the motor vehicle is out of service by reason of repair for any nonconformity." (Code Civ. Proc., §871.21, subd. (c)(2)). Without specifying the length of time, Plaintiffs' complaint does allege repair attempts were made. (See FAC, ¶22—"Plaintiff took the Subject Vehicle to the authorized repair facility … approximately three times starting when Vehicle had 10k

Plaintiffs' FAC (and, in particular, the first four causes of action) is an action which seeks restitution or replacement of a motor vehicle pursuant to Civil Code section 1793.2, i.e., claims under the Song-Beverly Act.

miles.") In view of such allegations, it is not clear from the face of the Plaintiffs' complaint that the first four causes of action are necessarily barred.[3]

Accordingly, defendant GM's demurrer to the first through fourth causes of action of Plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)], i.e., barred by a statute of repose, is OVERRULED.

B. FIFTH CAUSE OF ACTION – FRAUDULENT INDUMENT/CONCEALMENT

1. *Statute of Limitations*

In demurring to Plaintiffs' fifth cause of action for fraudulent inducement/ concealment, d\Defendant GM contends the limitations period for a claim predicated on fraud is three years from the date Plaintiffs allege they entered into the warranty contract, or March 31, 2020. However, by its express language, the statute of limitations for fraud is three years from the date of "the discovery, by the aggrieved party, of the facts constituting the fraud." (Code Civ. Proc., § 338, subd. (d); see *Britton v. Girardi* (2015) 235 Cal.App.4th 721, 734).

When evaluating whether a claim is time-barred, the court must determine: (1) which statute of limitations applies, and (2) when the claim accrued. (*E-Fab, Inc. v. Accountants, Inc. Services* (2007) 153 Cal.App.4th 1308, 1316 (*E-Fab*)). Initially, defendant GM contends the cause of action for fraud accrued on the date Plaintiffs entered into the warranty contract, i.e., March 31, 2017, and that the cause of action for fraud expired three years later on March 31, 2020. Defendant GM's analysis is incorrect. The date Plaintiffs entered into the warranty contract with defendant GM (or the date of purchase or the date of original delivery) is not the date the cause of action for fraud accrued. Plaintiffs' allegation and acknowledgment that defects/ nonconformities manifested during the applicable express warranty period (see FAC, ¶11) similarly does not lead to the conclusion that, from the face of the pleading, the fraud cause of action accrued or when. Plaintiffs' FAC attaches the warranty contract which provides powertrain warranty coverage "for 5 years or 60,000 miles, whichever comes first." The FAC does not allege when along this five (5) year timeline the defect manifested itself. It could have been in year one (2017-2018) or in year five (2021-2022). That ambiguity alone is enough to preclude application of the statute of limitations at the demurrer stage. A demurrer is not sustainable on statute of limitations grounds if there is only a possibility that the cause of action is time-barred; the defense must be clearly and affirmatively apparent from the allegations of the pleading [and matters of which the court may properly take judicial notice]. (*E-Fab*, *supra*, 153 Cal.App.4th at pp. 1315-1316).

2. *Pleading Deficiencies*

The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) the plaintiff sustained damage as a result of the concealment or suppression of the material fact. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 40 (*Rattagan*)).

In demurring to Plaintiffs' fifth cause of action for fraudulent inducement-concealment, defendant GM contends the FAC is defective in that Plaintiffs have not pleaded the claim with the requisite specificity.

[3] "'[A] demurrer based on an affirmative defense will be sustained only where the face of the complaint discloses that the action is necessarily barred by the defense.'" (*Stella v. Asset Management Consultants, Inc.* (2017) 8 Cal.App.5th 181, 191 [213 Cal. Rptr. 3d 850]; accord, *Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1191 [151 Cal. Rptr. 3d 827, 292 P.3d 871] [application on demurrer of affirmative defense of statute of limitations based on facts alleged in a complaint is a legal question subject to de novo review]; *Favila v. Katten Muchin Rosenman LLP* (2010) 188 Cal.App.4th 189, 224 [115 Cal. Rptr. 3d 274] ["'It must appear clearly and affirmatively that, upon the face of the complaint [and matters of which the court may properly take judicial notice], the right of action is necessarily barred.'"]). (*Heshejin v. Rostami* (2020) 54 Cal.App.5th 984, 992-993).

Though the particularity requirement generally mandates that a plaintiff plead facts establishing the aforementioned items, it is much more difficult to apply this rule in a case of non-disclosure because, as one court explained, "[h]ow does one show 'how' and 'by what means' something didn't happen, or 'when' it never happened, or 'where' it never happened?" (*Alfaro v. Community Housing Imp. System & Planning Ass'n., Inc.* (2009) 171 Cal.App.4th 1356, 1384). One of the purposes of the specificity requirement is to provide "notice to the defendant, to furnish the defendant with certain definite charged which can be intelligently met." (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 216, internal quotations omitted). However, when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy, even under strict rules of common law pleading, one of the canons was that less particularity is required when the facts lie more in the knowledge of the opposite party …." (*Id.*, at p. 217).

However, the *Rattagan* court declined to allow a more relaxed pleading standard for claims of concealment, explaining:

> California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations omitted.] For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts, as [plaintiff] has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission. "[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[] … are insufficient for the foregoing purposes." [Citation.]

(*Rattagan*, *supra*, (2024) 17 Cal.5th at pp. 43-44).

Defendant GM argues Plaintiffs' complaint is lacking an allegation concerning the content of the omitted facts and intent to conceal. The court does not agree. The complaint, at paragraphs 46 - 53, define an Engine Defect and specifically alleges defendant GM failed to disclose this defect to Plaintiffs despite acquiring knowledge of the Engine Defect. In the court's view, these allegations sufficiently identify the content of the omitted facts as well as fraudulent intent.

Defendant GM argues additionally that the Plaintiffs' complaint is lacking any facts establishing defendant GM had a duty to disclose. "The general rule for liability for nondisclosure is that even if material facts are known to one party and not the other, failure to disclose those facts is not actionable fraud unless there is some fiduciary or confidential relationship giving rise to a duty to disclose." (*La Jolla Village Homeowners' Assn. v. Superior Court* (1989) 212 Cal.App.3d 1131, 1151). To maintain a cause of action for fraud through nondisclosure or concealment of facts, a plaintiff must demonstrate that the defendant was under a legal duty to disclose those facts. (*OCM Principal Opportunities Fund, L.P. v. CIBC World Markets Corp.* (2007) 157 Cal.App.4th 835, 845). "Where … there is no fiduciary relationship, the duty to disclose generally presupposes a relationship grounded in some sort of transaction between the parties. Thus, a duty to disclose may arise from the relationship between seller and buyer … or parties entering into any kind of contractual agreement." (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337, internal citations omitted). In *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311-312 (*Bigler*) the court wrote:

> Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a "transaction" between the plaintiff and the defendant: "In *transactions* which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least

> three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Warner Constr. Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294 [85 Cal. Rptr. 444, 466 P.2d 996], italics added, fns. omitted). Other cases have described the requisite relationship with the same term. (See, e.g., *Hoffman v. 162 North Wolfe LLC* (2014) 228 Cal.App.4t 1178, 1187 [175 Cal. Rptr. 3d 820] (*Hoffman*); *LiMandri*, *supra*, 52 Cal.App.4th at p. 337 ["As a matter of common sense, such a relationship can only come into being as a result of some sort of transaction between the parties."]). ***Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.*** (Emphasis added).

Defendant GM contends there is no direct relationship alleged between it and Plaintiffs because Plaintiffs did not purchase the Subject Vehicle directly from GM. However, earlier in *Bigler*, the court cites with approval the following: " 'A duty to disclose facts arises only when the parties are in a relationship that gives rise to the duty, such as "'seller and buyer, employer and prospective employee, doctor and patient, ***or parties entering into any kind of contractual arrangement***.'"' [Citation.]" (*Bigler*, *supra*, 7 Cal.App.5th at p. 311; emphasis added). Here, although Plaintiffs do not allege they directly purchased the Subject Vehicle from defendant GM, Plaintiffs have alleged the existence of a contractual agreement (express written warranty) with defendant GM and thus, a basis upon which a duty to disclose arises. (See FAC, ¶¶6 – 7 and Exh. A).

Accordingly, defendant GM's demurrer to the fifth cause of action of Plaintiffs' FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] is OVERRULED.

IV. <u>CONCLUSION</u>

Based on the foregoing, the defendant's demurrer to the first and fourth cause of actions (Song-Beverly Act) and demurrer to the fifth cause of action (fraudulent inducement/concealment) of Plaintiff's FAC are OVRERRULED. The Court will prepare the formal Order.

<u>MOTION TO STRIKE (LINE # 3)</u>

In light of the court's ruling above with regard to the fraudulent concealment fifth cause of action, Defendant GM's motion to strike the demand for punitive damages from the FAC's prayer for relief is DENIED.

The Court will prepare the formal Order.

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Calendar Lines # 5

Case Name Nathaniel Cruz et al vs Ford Motor Company et al.

Case No. 24CV455442

Petition to Compel Arbitration

I. BACKGROUND

Plaintiffs Nathaniel Dela Cruz and Agnes Tibayan purchased a 2022 Ford Maverick ("Subject Vehicle") in June 2022 from Bill Brandt Ford ("Dealership"). (Complaint at ¶ 7). Plaintiffs delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (*Id.* at ¶ 46). Plaintiffs allege that Dealership "breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards." (*Id.* at ¶ 48). Plaintiffs sued Dealership and Ford Motor Company in December 2024. The sole cause of action alleged against Dealership is for negligent repair.

At issue is Dealership's petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiffs and Dealership when Plaintiffs purchased the Subject Vehicle. Having reviewed the language of the RISC's arbitration provision and the circumstances of its execution, the court will grant the petition and stay the action.

II. LEGAL STANDARD

Dealership maintains that the Federal Arbitration Act (FAA) governs the arbitration provision based on the language itself and because the agreement affects interstate commerce. (Motion to Compel Arbitration at pp. 6:21-7:1). The arbitration provision states "[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. §§ 1 et seq). and not by any state law concerning arbitration." (Declaration of Trina Clayton ["Clayton Decl."], Ex. A at p. 7). Under the FAA, the court's role is limited to determining "(1) whether a valid agreement to arbitrate exists, and if it does (2) whether the agreement encompasses the dispute at issue." (*Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine "whether a valid contract to arbitrate exists," courts apply "ordinary state law principles that govern contract formation." (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

Code of Civil Procedure section 1281.2 provides: "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement."

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement's existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

III. ANALYSIS

A. A VALID AGREEMENT TO ARBITRATE EXISTS

The arbitration provision in the RISC provides, in relevant part:

> Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, any allegation of waiver of rights under this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action.

(Clayton Decl., Ex. A at p. 7). Plaintiffs do not dispute that they signed the RISC when they purchased the Subject Vehicle. Plaintiffs signed and acknowledged the following notice of the arbitration provision: "**Agreement to Arbitrate**. By signing below, you agree that pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by a court action. See the Arbitration Provision for additional information concerning the agreement to arbitrate." (*Id.* at p. 1). The RISC further drew the arbitration provision to Plaintiffs' attention through the following disclaimer: ". . . YOU ACKNOWLEDGE THAT YOU HAVE READ BOTH SIDES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 7 OF THIS CONTRACT, BEFORE SIGNING BELOW." (*Id.* at p. 6). Plaintiffs' signatures on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [" ' "A party's acceptance of an agreement to arbitrate may be express, as where a party signs the agreement." ' "]).

Plaintiffs argue Dealership failed to properly authenticate the RISC and thus failed to meet its burden of proving the existence of a valid agreement to arbitrate. "The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature. Alternatively, the moving party can meet is burden by setting forth the agreement's provisions in the motion.' " (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted). Here, Dealership attached a copy of the RISC signed by Plaintiffs as Exhibit A to the Declaration of Trina Clayton. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Mtn. to Compel Arbitration at pp. 3:17-4:9). In any event, "[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication." (*Gamboa, supra,* 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF'S CLAIMS

Here, the arbitration provision broadly applies to "[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . ., between you and us. . ., which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship." (Clayton Decl., Ex. A at p. 7). Plaintiffs' sole cause of action against Dealership is a tort action for negligent repair. Plaintiffs and Dealership are the parties to the transaction. Plaintiffs' action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both "this contract" and "any resulting transaction or relationship" between the parties. Plaintiffs' claim against Dealership is covered by the arbitration provision.

Plaintiffs rely on *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122 to argue "warranty performance is not arbitrable through the form Sales Contract proffered by [Dealership]." (Opposition at p. 2:8-10). That opinion is distinguishable. *Ford Motor Warranty Cases* involved an attempt by an automobile manufacturer to compel arbitration based on a sales contract between a buyer and a dealership to which the manufacturer was not a party. The Supreme Court rejected the manufacturer's attempt to compel arbitration on a third party equitable estoppel theory. (*Id.* at p. 1126). By contrast, here the entity petitioning to compel arbitration is a party to the contract containing the arbitration provision. The RISC is an agreement Plaintiffs entered into with Dealership. As the dealership and a party to the agreement, Dealership may compel arbitration of Plaintiffs' claims.

The court does not reach Dealership's arguments about lack of waiver and lack of unconscionability. Plaintiffs forfeited any argument about waiver and unconscionability by not addressing Dealership's arguments on those points.

C. THIS ACTION IS STAYED IN ITS ENIRETY

Dealership requests a stay of the entire action. As Dealership notes, Plaintiffs have sued two entities, Ford Motor Company and Dealership, for different causes of action. Dealership argues "[p]roceeding against both defendants in separate forums carries an extremely high risk of rendering inconsistent rulings and rendering arbitration as to [Dealership] ineffective." (Reply at p. 8:22-24). Plaintiffs have not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

IV. CONCLUSION

Based on the foregoing, the petition to compel arbitration is GRANTED. This action is STAYED in its entirety pending the outcome of arbitration.

The Court will prepare the formal Order.

Calendar Lines # 6

Case Name Jaron Toilolo vs Wei-Chen Chen et al

Case No. 25CV474904

Demurrer

Before the court is defendants Wei-Chih Chen and Yield Engineering Systems, Inc.'s Demurrer to First Amended Complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

On September 16, 2023, plaintiff Jaron Julius Toilolo ("Plaintiff") was stopped at a red light on Brokaw Road waiting to make a left turn on to Zanker Road. (First Amended Complaint ("FAC"), ¶6). When the light turned green, Plaintiff proceeded to make a left turn when defendant Wei-Chih Chen ("Chen"), driving at a high rate of speed, suddenly ran the red light at the intersection and struck Plaintiff's vehicle on the driver's side. (*Id).* Plaintiff sustained serious injuries, property damage to his vehicle, and wage loss due to this accident. (FAC, ¶¶8 – 10).

On or about May 22, 2025, Plaintiff and defendant Chen entered into a written settlement agreement relating to the accident of September 16, 2023, whereby, in exchange for a payment of $15,000 from the insurer of the rental vehicle defendant Chen was driving, Plaintiff released defendant and other parties from all liability for the accident. (FAC, ¶12 and Exh. A). At the time of signing the release, Plaintiff was ignorant of the existence of any other insurance policy covering defendant and believed the $15,000 policy provided by the car rental company to defendant was the only insurance policy covering defendant that was available to Plaintiff. (FAC, ¶13). Plaintiff intended to file a claim for underinsured motorist benefits under his own automobile insurance policy. (*Id*).

Thereafter, on July 11, 2025, Plaintiff discovered defendant Chen had valid liability coverage through Travelers Insurance. (FAC, ¶14). Had Plaintiff known this fact, he would not have signed the release. (*Id*). Plaintiff's signature on the release was the result of Plaintiff's unilateral mistake of fact. (*Id*). Defendant Chen knew of or suspected the above-described mistake at the time of execution of the written release in that defendant Chen knew he had an insurance policy with Travelers Insurance which might provide coverage for Plaintiff's damages. (FAC, ¶15).

On September 11, 2025, Plaintiff filed a complaint against defendant Chen asserting causes of action for:

(1) Negligence
(2) Rescission of Release

On October 24, 2025, Plaintiff filed the now operative FAC which continues to assert the same two causes of action.

On November 26, 2025, Plaintiff filed a Doe amendment substituting defendant Yield Engineering Systems, Inc. ("YESI") for a Doe defendant. The FAC alleges defendant Chen was acting within the scope of agency and/ or employment of defendant YESI. (FAC, ¶1).

On March 16, 2026, defendants Chen and YESI filed the motion now before the court, a demurrer to Plaintiff's FAC.

II. <u>LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

"A general demurrer will lie where the complaint 'has included allegations that clearly disclose some defense or bar to recovery.' [Citation.]" (*Cryolife, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1145, 1152). Defendants Chen and YESI generally demur to Plaintiff's first cause of action for negligence because the FAC includes allegations that Plaintiff released defendant Chen and other parties from all liability for the accident. (FAC, ¶12 and Exh. A). "The existence of a valid release is a complete defense to a tort action against the releasee." (*Rodriguez v. Oto* (2013) 212 Cal.App.4th 1020, 1026 (*Rodriguez*)).

> Where the complaint's allegations or judicially noticeable facts reveal the existence of an affirmative defense, the "plaintiff must 'plead around' the defense, by alleging specific facts that would avoid the apparent defense. Absent such allegations, the complaint is subject to demurrer for failure to state a cause of action . . . ." (*Gentry v. eBay, Inc.* (2002) 99 Cal.App.4th 816, 824).

III. <u>ANALYSIS</u>

In the FAC, Plaintiff attempts to plead around the release by alleging, as his second cause of action, a basis for rescission of the release. Defendants Chen and YESI contend, however, that Plaintiff has not sufficiently stated a claim for rescission, at least not against the moving defendants because they are not parties to the release agreement despite the FAC's allegation that "Plaintiff and Defendant Chen entered into a written settlement agreement and release of all claims." (See FAC, ¶12). Moving defendants direct the court's attention to the copy of the release agreement attached to the FAC noting that the release agreement is signed only by Plaintiff and his attorney.[4] Defendants Chen and YESI are not signatories to the release agreement. That moving defendants are not parties to the release agreement can further be inferred from Plaintiff's allegation that the $15,000 Plaintiff received in consideration for the release was paid by "the insurer of the rental automobile that defendant [Chen] was driving;"

[4] "[F]acts contained in the exhibit take precedence over and supersede any inconsistent or contrary allegations in the pleading." (*Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 597).

Plaintiff's allegation that "the $15,000 policy [was] provided by the car rental company;" and the release agreement's identification of "SIXT RENT-A-CAR LLC" and "EMPIRE FIRE AND MARINE INSURANCE COMPANY" as the first two releasees. (See FAC, ¶¶12 and 13 and Exh. A).

By seeking to enforce the release agreement and citing to *Rodriguez*, *supra*, 212 Cal.App.4th 1020, it is clear defendants Chen and YESI recognize they are third party beneficiaries of the release agreement, even if they are not one of the contracting parties thereto.

> The governing substantive principle is that a nonparty who claims benefits under the contract is entitled to do so as long as the claimed benefit does not flow to him as a mere *incident* of the agreement, but is one the contracting parties *intended* to confer. (Rest.2d Contracts, § 302; see Civ. Code, § 1559 [contract "made expressly for the benefit" of third person "may be enforced by him at any time before the parties thereto rescind it"](*Rodriguez*, *supra*, 212 Cal.App.4th at p. 1028).

Here, defendants Chen and YESI seek to enforce the release as third party beneficiaries of the release agreement and, as *Rodriguez* states, moving defendants may do so "at any time before the parties [to the release agreement] rescind it." (See also Civ. Code, §1559—"A contract, made expressly for the benefit of a third person, may be enforced by him at any time before the parties thereto rescind it.") In opposition, Plaintiff claims to be ignorant of the identity of the other contracting part(ies) to the release agreement. The court would presume the other named releasees identified above, but will leave it to Plaintiff to make that determination.

Plaintiff also suggests a release agreement need only be signed by the releasor. However, "Release agreements are governed by the generally applicable law of contracts." (*Neverkovec v. Fredericks* (1999) 74 Cal.App.4th 337, 348). And, "It is essential to the existence of a contract that there should be parties capable of contracting." (Civ. Code, §1550). Consequently, the court will agree with moving defendants that Plaintiff has not properly stated a cause of action for rescission directed at the moving defendants.

Moving defendants argue, additionally, that although rescission may be based upon a unilateral mistake, such unilateral mistake must be accompanied by a shared misunderstanding or the other contracting party must contribute to the mistake by misrepresentation, even if innocently. (Civ. Code, §1689, subd. (b)(1); *Crocker-Anglo Nat'l Bank v. Kuchman* (1964) 224 Cal.App.2d 490, 496 – 497). Plaintiff, at paragraph 15 of the FAC, has alleged defendant Chen "knew of or suspected [Plaintiff's mistake as defendant Chen] knew that he had an insurance policy with Travelers Insurance which might provide coverage for Plaintiff's damages."
Plaintiff, in opposition, cites the full relevant text of Civil Code section 1689, subdivision (b)(1), which states:

> A party to a contract may rescind the contract in the following cases:
> (1) If the consent of the party rescinding, or of any party jointly contracting with him, was given by mistake, or obtained through duress, menace, fraud, or undue influence, exercised by or with the connivance ***of the party as to whom he rescinds, or of any other party to the contract*** jointly interested with such party. (Emphasis added).

As discussed above, defendant Chen is not a party to the release agreement but rather an intended third party beneficiary. To obtain rescission, Plaintiff must allege that his unilateral mistake was induced by or known to a contracting party, not a third party beneficiary.

As to the moving defendants' last argument that Plaintiff has not restored "to the other party everything of value which he has received from him under the contract," as is required to effect a rescission pursuant to Civil Code section 1691, the court agrees with Plaintiff that Civil Code section 1691 gives a rescinding party the option of "offer[ing] to restore" the consideration received and allows "the service of a pleading in an action or proceeding that seeks relief based on rescission [to] be deemed to be such notice [of rescission] or offer [to restore] or both."

IV. CONCLUSION

Based on the foregoing, defendants Chen and YESI's demurrer to Plaintiff's FAC on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] is SUSTAINED with 10 days' leave to amend. The Court will prepare the formal Order.

Calendar Lines # 7
Case Name Farmers Insurance Exchange vs Nathaniel Villareal
Case No. 25CV477397

Motion to Compel Production of Documents & Sanctions

I. BACKGROUND

This underinsured motorist case stems from a September 12, 2022, motor-vehicle incident that occurred in Santa Clara County between the plaintiff Nathaniel Villarreal and Omar Gonzalez.

Before this court is the defendant/respondent Farmers Insurance Exchange ("Farmers Insurance") motion to compel responses to request for production of documents ("RFPD"), set one, numbers 1-19 and sanctions against the plaintiff/claimant Nathaniel Villareal. The motion was filed on February 27, 2026 that was accompanied by a proof of service via electronic service on that same day.

No opposition papers were filed. Per Code of Civil Procedure section 1005(b) opposition papers were due on June 9, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the following: Defendant's motion to compel response to RFPD, set one and sanctions, including the defendant's notice of motion, memorandum of points and authorities, Declaration of Claudia Lozano and attached Exhibits 1-11 (totaling 72 pages), proof of services, and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section § 2031.310, subdivision a: "On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that . . . [a] statement of compliance with the demand is incomplete[;] . . . [a] representation of inability to comply is inadequate, incomplete, or evasive[; or] . . . [a]n objection in the response is without merit or too general."

A. TIMELINESS

Code of Civil Procedure section 2031.310, subdivision (c) provides that a motion to compel further responses to requests for production must be brought within forty-five days of service of the verified response, supplemental verified response, or on a date to which the propounding and responding parties have agreed to in writing; otherwise, the propounding party waives the right to compel further responses. (Code Civ. Proc., § 2031.310, subd. (c); but see *Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 134-136 [suggesting that the 45-day deadline does not apply to (*i.e.*, it does not begin to run with service of) objections-only responses; it only applies to responses that are required to be verified]).

"[T]he time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers[.]" (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410). The 45-day deadline "is 'jurisdictional' in the sense that it renders the court without authority to rule on motions to compel other than to deny them." (*Ibid*).

B. MEET AND CONFER

Code of Civil Procedure section 2031.310(b)(2) requires parties to meet and confer prior to filing a motion to compel. "A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040." (Code Civ. Proc., § 2031.310, subd. (b)(2)). "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion." (Code Civ. Proc., § 2016.040).

C. SEPARATE STATEMENT

California Rules of Court, rule 3.1345 (a)(2) explicitly states that "Any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement." "A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue." (Cal. Rules of Court, rule 3.1345(c)).

III. ANALYSIS

From November 26, 2023 to February 15, 2024, the defendant granted claimant's counsel four separate extensions to respond to the form interrogoatires. (*Id.* at p. 10-11*;* Exhibit 2-6). On March 26 2024, defense counsel received a substitution of attorney form stating that the plaintiff retained Bennett M. Cohen as counsel. (*Id.;* Exhibit 7). On April 5, defense counsel's paralegal reached out to Mr. Cohen regarding the outstanding discovery. (*Id.;* Exhibit 8). On April 24, 2024, defense counsel e-mailed Mr. Cohen regarding the overdue discovery and informed Plaintiff's counsel that the defense would reserve the discovery that was due on February 29, 2024 and sent a demand for arbitration. (*Id.;* Exhibit 9). Defense counsel's paralegal sent a follow-up email in mid-May 2024. (*Id.;* Exhibit 8). On July 11, 2024, Plaintiff's counsel stated he would seek to respond to the discovery within thirty days. (*Id.,* Exhibit 10).

On November 23, 2024, defense counsel reached out to plaintiff's counsel regarding the overdue discovery, emphasizing that it had been three months since Mr. Cohen stated he would provide responses and demanded responses within ten days on or before December 5, 2024. (*Id.,* at p. 12*;* Exhibit 11).

On April 15, 2025, defense counsel reached out to plaintiff's counsel stating it had been eight months since the defense served discovery and had not received responses and would seek a motion to compel. (*Id.,* at p. 12; Exhibit 11). On April 21, plaintiff's counsel sought a ten day extension, which defense counsel granted until May 1, 2025. (*Id*).. Plaintiff's counsel requested an extension util May 9, 2025. (*Id*).. On May 16, 2025, defense counsel notified plaintiff's counsel that he would be filing a motion to compel if no responses were received by the following week. Plaintiff received no responses as of the filing of this motion on February 27, 2026. (*Id.,* at p. 13).

Per Code of Civil Procedure section 1005(b) opposition papers were due on June 9, 2026. No opposition papers were filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. Failure to oppose a motion leads to the presumption that the plaintiff has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489). Moving party meets its burden of proof.

Here, the Court finds the Motion is timely, under Code of Civil Procedure section 2031.310. Defendant has satisfied the meet and confer requirements. Given there was no responses to the request for production, a separate statement is not required. The discovery at issue pertains to Defendant's RFPD, Set One, Nos. 1 – 19 that were propounded on the plaintiff on October 27, 2023. (Declaration of Lozano at p. 10; Exhibit 1). The defendant has granted the plaintiff six separate extensions to respond to the form interrogoatires, set one from November 26, 2023 to May 1, 2025. The Court notes the significant lapse in time. No responses were served to date.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2030.290 provides: "(c) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. If a party then fails to obey an order compelling answers, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)."

Farmers Insurance Exchange seeks sanctions and attorney's fee in the amount of $585.00 against the plaintiff Nathaniel Villarreal based on plaintiff's failure to provide responses to RFPD. (Declaration of Lozano, p. 13). Farmers Insurance alleges that the Claimant was given almost over a year and a half of time for extensions to respond to discovery, and has still failed to respond. Defense counsel attests to spending four hours on preparing and filing this motion and estimates expending another two hours on preparing a reply brief and attending court. The hourly rate in this matter is $250.00 and for six hours requested would amount to $1, 500.00. Defendant's also seek a $60.00 filing fee. However, defense seeks $585.00 in total.

The Court notes that no reply brief was filed and there was no opposition to the motion. Given that the plaintiff has failed to provide any response to the RFPD, unopposed motion, and the Court granting the motion to compel, the Court finds that discovery sanctions in the amount of $585.00 is reasonable.

V. CONCLUSION

Based on the foregoing, the Court orders as follows:

The motion to compel responses to RFPD, set one is GRANTED. The plaintiff is to provide verified responses to RFPD, set one, within twenty (20) days of this hearing date.

The motion for sanctions is GRANTED. The plaintiff is to pay the defendant's attorney's fee and cost in the amount of $585.00 within twenty (20) days of this hearing date.

The Court will prepare the formal Order.

Calendar Lines # 8-9
Case Name Mariet Zovichi vs Thomas Olds et al
Case No. 25CV480445
Motion to Strike (Line # 8) and Demurrer (Line # 9) Before the court is Defendants Demurrer to portions Plaintiffs' First Amended Complaint (Line # 9) and Defendants' Motion to Strike paragraphs 64 and 82 alleged in Plaintiff's FAC, in addition to the entire prayer for relief on all causes of action (Line # 8). Pursuant to California Rule of Court 3.1308, the court issues its tentative

ruling as follows. The Background of the case is set forth in more detail in the Demurrer portion of the court's order. The Court addresses the Demurrer first and then the Motion to Strike.

DEMURRER (LINE # 9)

I. BACKGROUND

Before the court is defendants GHC of Los Gatos, LLC, dba Plum Tree Care Center ("Plum Tree") and GHC of San Jose, LLC, dba Vista Manor Nursing Center's ("Vista Manor," collectively "Moving Defendants") demurrer to portions of Plaintiff Mariet Mani Zovichi's ("Plaintiff") First Amended Complaint (FAC").

Plaintiff, individually and as successor in interest of decedent Nazik Kalantarians ("Decedent") alleges the following claims against Moving Defendants and defendants Life Generations Healthcare, LLC ("LGH"), Thomas Olds ("Olds"), Lois Mastrocola ("Mastrocola"), and Juliet Mani Runhaar: (1) elder abuse; (2) professional negligence; (3) violation of Health & Safety Code section 1430, subdivision (b); and (4) wrongful death.

According to the FAC, Decedent was a resident of Moving Defendants, which are skilled nursing facilities licensed under Health and Safety Code sections 1250, subdivision (c). (FAC, ¶¶ 4, 11). Moving Defendants are alter egos of LGH, with Olds and Mastrocola as LGH's officers. (*Id.* at ¶ 47). LGH controls daily operations of Plum Tree and Vista Manor, including their staffing policies. (*Id.* at ¶ 48).

During her stay at Vista Manor, Decedent sustained injuries from falls despite having a documented high fall risk status and needing assistance for transfers and mobility. (FAC, ¶ 20). Decedent's falls were because Vista Manor failed to: (1) respond to call lights in a timely manner; (2) provide the requisite assistance for transfers; and (3) maintain adequate staffing to monitor high risk residents like Decedent. (*Ibid)*. Vista Manor also engaged in physical abuse and deprived Decedent of adequate nutrition and hydration. (*Id.* at ¶¶ 21-22). On December 11, 2024, Decedent suffered a seizure and was transferred to Good Samaritan Hospital, where a CT scan revealed intracranial hemorrhages caused by or related to Decedent's falls at Vista Manor. (*Id.* at ¶¶ 25-26). Vista Manor failed to document and report these falls. (*Id.* at ¶ 26).

After hospitalization, Decedent was admitted to Plum Tree on December 17, 2024, where she had documented signs of dehydration and poor or unstable blood pressure from December 20, 2024 through January 3, 2025. (*Id.* at ¶¶ 27-31). Plum Tree failed to keep Decedent's room warm and provide extra blankets despite Decedent's repeated complaints. (*Id.* at ¶ 32). Plum Tree also failed to follow physician orders regarding Decedent's diet, contributing to her development of aspiration pneumonia. (*Id.* at ¶¶ 33-34). On February 5, 2025, Decedent's daughter visited Decedent and observed she was extremely ill, but Plum Tree staff declined to provide immediate assistance. (*Id.* at ¶ 36). Decedent was eventually transferred to the emergency room, where she never recovered, and ultimately passed on February 15, 2025. (*Id.* at ¶¶ 36-37).

Following Decedent's death, Plaintiff could not obtain records from Plum Tree to verify what occurred, and Plum Tree only provided incomplete records after Plaintiff lodged a complaint with the California Department of Public Health ("CDPH"). (FAC, ¶ 38). CDPH conducted an independent investigation that determined Plum Tree failed to prepare a care plan, assess Decedent properly, and document Decedent's conditions and needs accurately. (*Ibid).*

On March 6, 2026, Defendants filed the demurrer and motion to strike presently before the court. Plaintiff filed timely written oppositions.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

In ruling on a demurrer, the court treats the motion "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688 [citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318]). "The reviewing court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. The court does not, however, assume the truth of contentions, deductions or conclusions of law." (*Gregory v. Albertson's, Inc.* (2002) 104 Cal.App.4th 845, 850). However, it has long been held that on demurrer, leave to amend should be granted where "'there is a reasonable possibility that the defect can be cured by amendment.'" (*Loeffler v. Target Corp*. (2014) 58 Cal.4th 1081, 1100 (*Loeffler*); see also *A.J. Fistes Corp. v. GDL Best Contractors, Inc.* (2019) 38 Cal.App.5th 677, 687).

On a demurrer or motion to strike, the court considers only the pleading under attack, any attached exhibits, and any facts or documents of which the court may take judicial notice. (See *Barnett v. Fireman's Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505). Evidentiary facts found in exhibits attached to complaint can be considered on demurrer. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94 (*Frantz*)).

III. ANALYSIS

Moving Defendants demur to the first cause of action for elder abuse, third cause of action for violation of Health & Safety Code section 1430, subdivision (b), and fourth cause of action for wrongful death on the ground that each fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e)). Moving Defendants also demur to the fourth cause of action for wrongful death on the ground that the claim is uncertain.[5] (Code Civ. Proc., § 430.10, subd. (f)).

A. FIRST CAUSE OF ACTION: ELDER ABUSE

In demurring to the first cause of action, Moving Defendants contend that the FAC does not allege with particularity: (1) Moving Defendants' acts of egregious abuse or neglect; and (2) corporate authorization or ratification of any wrongful conduct related to Decedent's care.

1. *General Principles of Elder Abused Based on Neglect*

The Elder Abuse and Dependent Adult Civil Protection Act as codified by Welfare and Institutions Code section 15600 et seq. (the "Elder Abuse Act") protects "a particularly vulnerable portion of the population from gross mistreatment in the form of abuse and custodial neglect." (*Delaney v. Baker* (1999) 20 Cal.4th 23, 33 (*Delaney*)). As a statutory cause of action, the FAC must plead the first cause of action for elder abuse with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790 (*Covenant Care*)).

[5] Moving Defendants' notice of demurrer asserts that the first—rather than the fourth—cause of action is subject to a demurrer for uncertainty. Considering the arguments within the memorandum of points and authorities, the court understands the demurrer for uncertainty is directed to the fourth cause of action.

The Elder Abuse Act defines neglect as "[t]he negligent failure of any person having the care or custody of an elder or a dependent adult to exercise that degree of care that a reasonable person in a like position would exercise." (Welf. & Inst. Code, § 15610.57, subd. (a)(1); see *Covenant Care, supra,* 32 Cal.4th at p. 783 [statutory definition speaks to failure to provide medical care]). Negligent acts include the failure to: (1) assist in personal hygiene and provide food, clothing, or shelter; (2) provide medical care for mental or physical needs; (3) protect from health and safety hazards; and (4) prevent malnutrition or dehydration. (Welf & Inst. Code, § 15610.57, subd. (b)).

To recover the enhanced remedies available under the Elder Abuse Act, the claim must also allege recklessness, fraud, malice, or oppression. (See *Covenant Care, Inc., supra,* 32 Cal.4th at p. 783 [distinguishing elder abuse claim from professional negligence]). "Oppression, fraud, and malice involve intentional, willful, or conscious wrongdoing of a despicable or injurious nature." (*Carter v. Prime Healthcare Paradise Valley LLC*, 198 Cal.App.4th 396, 405 (*Carter*), quotations omitted). Recklessness requires a deliberate disregard of a high degree of probability that an injury will occur. (*Ibid*). The enhanced remedies for elder abuse are only available for "acts of egregious abuse", and an allegation of authorization or ratification on a managing agent's part must be alleged to recover damages against corporate defendants. (*Ibid*.; see Welf. & Inst. Code, § 15657, subd. (c); Civ. Code, § 3294, subd. (b)).

2. *Sufficiency of the Allegations*

Moving Defendants first argue that the elder abuse claim is deficient because the FAC fails to allege (1) any act of egregious abuse with the requisite particularity; and (2) Defendants acted with knowledge that injury was substantially certain to occur (*i.e.*, oppression, fraud, or malice) or with conscious disregard of the high probability of injury (*i.e.* recklessness). Plaintiff disputes these characterizations.

The court first clarifies that there is no requirement that the elder abuse claims be pled with specificity; it is sufficient to allege the claim with particularity such that Moving Defendants are made aware of the "nature, source[,] and extent" of the claim. (*Youngman v. Nevada Irrigation Dist.* (1969) 70 Cal.2d 240, 245; see *Gutierrez v. Carmax Auto Superstores California* (2018) 19 Cal.App.5th 1234, 1261 [distinguishing "reasonable particularity" as a "more lenient pleading standard"]). Thus, Plaintiff need not plead "facts which 'show how, when, where, to whom, and by what means'" an act occurred as in a fraud claim which requires pleading with such specificity. (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645; see *Burks v. Poppy Construction Co.* (1962) 57 Cal. 2d 463, 474 ["less particularity is required where the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff."])

The FAC alleges that Vista Manor failed to prevent falls and provide adequate fall prevention during Decedent's admission from November 5, 2024 through December 11, 2024, resulting in a fall on December 10, 2024 that triggered a seizure and intracranial hemorrhage the next day. (FAC, ¶¶ 20, 24-26). The FAC further alleges that Vista Manor failed to (1) implement the fall prevention measures required by Decedent's care plan (*e.g.*, provide at least one person for assistance in transfers and mobility); (2) provide adequate supervision; and (3) respond to her needs in a timely manner. (*Id.* at ¶¶ 20, 24). Plaintiff further attributes Decedent's fall and consequent injury to Vista Manor's failure to provide adequate staffing. (*Id.* at ¶ 26).

The FAC next alleges that on December 31, 2024, Plum Tree failed to ensure Decedent had adequate oral fluid intake and failed to implement effective interventions to address Decedent's hydration needs despite knowing Decedent had dehydration issues after admission. (FAC, ¶¶ 30, 33). Furthermore, on February 5, 2025, Decedent was feverish, incoherent, and extremely ill, but despite repeated requests for immediate assistance by Decedent's daughter, Plum Tree staff told the daughter that they had "other pressing matters to attend to." (*Id.* at ¶ 36). Decedent only received medical attention after the daughter caused a scene, prompting a staff member to notify a doctor who advised immediate transfer to the emergency room. (*Ibid).*

The foregoing allegations are sufficient to allege at least one specific incident where Vista Manor and Plum Tree denied medical care necessary to meet Decedent's physical and hydration needs, exacerbating Decedent's condition.

The FAC also adequately pleads that Moving Defendants acted recklessly as it alleges that Vista Manor and Plum Tree continued to maintain insufficient staff despite receiving multiple reports on the difficulties of providing adequate care without sufficient staff. (FAC, ¶ 64(c)). Specifically, the FAC alleges that non-moving defendants Olds and Mastrocola were members of Vista Manor and Plum Tree's governing body and were responsible for approving staff budget and establishing staffing policies. (*Id.* at ¶¶ 50-51, 54-55). Both received deficiency reports by CDPH[6] documenting that understaffing caused harm to residents, and facility staff reported they could not respond to call lights, assist with meals, or monitor high-risk residents due to inadequate staffing. (*Id.* at ¶ 64(b)). Notwithstanding these reports, Vista Manor and Plum Tree continued to maintain insufficient staff to maximize profit at the expense of resident care and safety. (*Id.* at ¶¶ 47, 64(c)).

The factual allegations are analogous to *Fenimore v. Regents of University of California* (2016) 245 Cal.App.4th 1339 (*Fenimore*), where the court reversed a ruling sustaining a demurer to an elder abuse cause of action. There, the *Fenimore* court noted,

"The FAC supplied allegations that may show recklessness. It alleged the Hospital had a pattern and knowing practice of improperly understaffing to cut costs, and had the Hospital been staffed sufficiently, George would have been properly supervised and would not have suffered injury." (*Id.* at p. 1349). These allegations, the *Fenimore* court noted, were distinguishable from the allegations in *Worsham v. O'Connor Hospital* (2014) 226 Cal.App.4th 331 (*Worsham*), which failed to support the allegation of reckless understaffing with particular facts. (*Fenimore, supra,* 245 Cal.App.4th at p. 1350; see *Worsham, supra,* 226 Cal.App.4th at p. 338 ["Absent specific facts indicating at least recklessness, any failure to provide adequate supervision would constitute professional negligence but not elder abuse"]).

As noted above, the FAC alleges that Moving Defendants deliberately maintained insufficient staff despite receiving reports and regulatory deficiency notices. Thus, just as in *Fenimore*, Plaintiff has alleged at least one viable theory of elder abuse based on recklessness. (*Fenimore, supra,* 245 Cal.App.4th at p. 1351 ["the court should not sustain a demurrer when the plaintiff has stated a cause of action under *any* possible legal theory, and it may not sustain a demurrer to only a part of a cause of action"]). The court therefore need not address Moving Defendants' assertions that the FAC insufficiently alleges malicious, oppressive, or fraudulent conduct for purposes of this demurrer.

3. *Authorization of Corporate Defendants*

Plaintiff's FAC fails to allege the involvement of an officer, director, or managing agent of Moving Defendants, which would warrant a claim for punitive damages. (See *Carter, supra,* 198 Cal.App.4th at p. 405). To the extent that Moving Defendants seek to challenge the punitive damages allegations, the proper procedural vehicle is a motion to strike, not demurrer. (See *Caliber Bodyworks, Inc. v. Super. Ct.* (2005) 134 Cal.App.4th 365, 385 ["The appropriate procedural device for challenging a portion of a cause of action seeking an improper remedy is a

[6] Defendants contend for the first time in their reply that Plaintiff's allegations concerning CDPH investigations should be stricken under Health & Safety Code, section 1280, subdivision (f), which provides: "In no event shall the act of providing a plan of correction, the content of the plan of correction, or the execution of a plan of correction, be used in any legal action or administrative proceeding as an admission within the meaning of Sections 1220 to 1227, inclusive, of the Evidence Code against the health facility, its licensee, or its personnel." The CDPH documentation is not being offered as an admission, but as evidence of prior knowledge, which the statute does not expressly preclude.

motion to strike."]). In any event, Plaintiff correctly points out the FAC provides more than boilerplate allegations of authorization.

The FAC alleges that Olds is the CEO, founder, and majority owner of LGH, with ultimate authority over business decisions concerning Plum Tree and Vista Manor—including staffing policies. (FAC, ¶ 50). Olds received reports regarding the deficiencies at Plum Tree and Vista Manor, controlled the resources needed to meet Decedent's basic needs, and nonetheless made the deliberate decision to continue understaffing practices. (*Id.* at ¶¶ 51-52). Mastrocola is the CFO and founder of LGH, with responsibility over the financial management of Plum Tree and Vista Manor, including the staffing budgets that determined the availability of nurses and aides for residents. (*Id.* at ¶ 54). Despite receiving reports of deficiencies and incidents affecting residents, Mastrocola deliberately maintained inadequate staffing levels. (*Id.* at ¶ 56). Finally, Plum Tree and Vista Manor, as alter egos of LGH, have no independent management or decision-making authority because LGH has full, complete, and exclusive authority over all business decisions and 100% ownership of both facilities. (*Id.* at ¶¶ 45(b)-(c)).

These allegations of reckless conduct are sufficient to allege ratification or authorization at the pleadings stage. (*Covenant Care*, *supra*, 32 Cal.4th at p. 789; see Civ. Code, § 3294, subd. (b) ["With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation."]; see *White v. Ultramar* (1999) 21 Cal.4th 563, 573 ["The managing agent must be someone who exercises substantial discretionary authority over decisions that ultimately determine corporate policy."]; cf. *Romo v. Ford Motor Co.* (2002) 99 Cal.App.4th 1115, 1141 [requiring clear and convincing evidence of managing agent status upon review of punitive damages award in *a motion for new trial*]).

Moving Defendants' demurrer to the first cause of action for elder abuse is OVERRULED.

B. THIRD CAUSE OF ACTION: VIOLATION OF HEALTH AND SAFETY CODE SECTION 1430 SUBDIVISION (B)

Moving Defendants argue that the third cause of action simply asserts statutory violations without providing factual allegations in support. Specifically, Moving Defendants assert the claim is defective because it only alleges statutory and regulatory provisions under Health and Safety Code section 1430 and Section 72527 of Title 22 of the California Code of Regulations, otherwise known as the Patient's Bill of Rights.

While the FAC does identify various violations of the Patient's Bill of Rights, the FAC also realleges the specific violation already set forth in preceding paragraphs. For example, paragraph 78(b) of the FAC alleges: "The right to be treated with consideration, respect and full recognition of dignity and individuality. [22 Cal. Code. of Regulations §72527(a)(12).] VIOLATION: Decedent was subjected to discriminatory remarks about her national origin and physical appearance; was left cold without blankets despite repeated complaints; and was told by staff that they had "more pressing matters" when her daughter sought emergency assistance on February 5, 2025." The violation is also alleged in paragraphs 21, 32, and 36 of the FAC, which are all incorporated by reference in the third cause of action. (FAC, ¶ 76).

These allegations are sufficient, accordingly, Moving Defendants' demurrer to the third cause of action is OVERRULED.

C. FOURTH CAUSE OF ACTION: WRONGFUL DEATH

In demurring to the fourth cause of action for wrongful death on the ground of failure to allege sufficient facts, Moving Defendants contend that the FAC fails to allege a causal link between their misconduct and Decedent's causes of death: pulmonary edema and hypertension. The Court finds this argument is apt.

The FAC alleges that the "intracranial hemorrhage, chronic dehydration, malnutrition, and aspiration pneumonia. . . directly caused and/or substantially contributed to Decedent's death." (FAC, ¶ 84). Decedent's death certificate is appended to the FAC as Exhibit A and identifies her cause of death as pulmonary edema and hypertension. (*Id.*, Ex. A).

Contrary to Plaintiff's assertion, the death certificate is not extrinsic evidence as the court may consider exhibits attached to complaint in ruling on a demurrer, and where facts in the exhibit contradict the allegation of the pleadings, the facts in the exhibit control. (See *Frantz, supra,* 189 Cal.App.3d at p. 94; see also *Mead v. Sanwa Bank California* (1998) 61 Cal.App.4th 561, 568). Thus, Plaintiff's theories of Decedent's cause of death (*e.g.*, intracranial hemorrhage and aspiration pneumonia) are insufficient to survive demurrer because the death certificate specifically identifies the cause of death as pulmonary edema and hypertension. Moreover, Plaintiff insufficiently pleads a connection between the alleged abuse and Decedent's cause of death. For example, Decedent's aspiration pneumonia was allegedly "more likely than not the cause of her death", but the FAC fails to explain how the development of aspiration pneumonia on an unspecified date caused Decedent's eventual death from pulmonary edema and hypertension on February 15, 2025. (FAC, ¶ 33). While Plaintiff asserts that pulmonary edema may be a complication of aspiration pneumonia and fluid imbalance, this is not alleged within the complaint. Under these circumstances, the FAC does not sufficiently plead a causal connection between Moving Defendants' alleged conduct and Decedent's death.

Moving Defendants' demurrer to the fourth cause of action for wrongful death is SUSTAINED with 20 days' leave to amend. Given this ruling, the court declines to reach the merits of Defendants' demurrer on the ground of uncertainty.

IV. <u>CONCLUSION</u>

Based on the foregoing, Defendants' demurrer to the first cause of action for elder abuse and third cause of action for violation of Health and Safety Code section 1430, subdivision (b) on the ground of failure to state sufficient facts is OVERRULED.

Defendants' demurrer to the fourth cause of action for wrongful death on the ground of failure to state sufficient facts is SUSTAINED with 20 days' leave to amend.

The Court will prepare the formal Order.

<u>MOTION TO STRIKE (LINE # 8)</u>

I. <u>BACKGROUND</u>

Before the court is Moving Defendants' motion to strike paragraphs 64 and 82 of the FAC, in addition to the entire prayer for relief on all causes of action.

II. <u>LEGAL STANDARD</u>

Pursuant to Code of Civil Procedure section § 436, a court may strike out any irrelevant, false, or improper matter inserted into any pleading, or strike out all or part of any pleading not drawn or filed in conformity with the laws of this state, a court of rule or an order of the court. In ruling on a motion to strike, the court reads the complaint as a whole, all parts in their context, and assumes the truth of all well-pleaded allegations. (See *Turman v. Turning Point of Central California, Inc.* (2010) 191 Cal.App.4th 53, 63 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255).

III. ANALYSIS

Notwithstanding the multiple allegations Moving Defendants identify as subject to the motion to strike, Moving Defendants only substantively argue that Plaintiff's request for punitive damages under Civil Code section 3294 and attorneys' fees under Welfare and Institutions Code section 15657 must be stricken. These remedies are sought for the first cause of action, which alleges violations of the Elder Abuse Act, and Defendants' motion to strike largely reiterates the arguments raised in their demurrer—*i.e.* the FAC lacks factual details on recklessness, oppression, fraud, or malice, in addition to authorization or ratification by a managing agent. As the court has found that Plaintiff sufficiently pled a cause of action for elder abuse in its concurrent ruling on the demurrer, and the elder abuse claim provides punitive damages and attorneys' fees as a remedy, the motion to strike must be denied.

Moving Defendants make no argument in support of striking the remaining allegations (e.g., paragraph 64 alleging Moving Defendants' reckless acts, paragraph 82 alleging entitlement to remedies under Health and Safety Code section 1430, subdivision (b)) and therefore waives the argument. (See *Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 ["The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived."]).

IV. CONCLUSION

Moving Defendants' motion to strike is DENIED in its entirety. The Court will prepare the formal Order.